

House File 2618

S-5134

1 Amend House File 2618, as passed by the House, as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. Section 18B.1, Code 2026, is amended to read as
5 follows:

6 **18B.1 Iowa smart planning principles.**

7 State The general assembly finds that it has a duty to
8 maintain healthy oversight over planning, zoning, development,
9 and resource management decisions made by state agencies,
10 local governments, and other public entities to ensure
11 the protection of individual rights and proper stewardship
12 of taxpayer dollars. Therefore, state agencies, local
13 governments, and other public entities shall consider and
14 may apply the following principles during deliberation of
15 all appropriate planning, zoning, development, and resource
16 management decisions, except that nothing in this section shall
17 be construed to expand the eminent domain authority of a state
18 agency, local government, or other public entity beyond that
19 which is authorized under chapter 6A or 6B:

20 1. Collaboration Investment. Governmental, community,
21 private sector entity, and individual stakeholders, including
22 those outside the jurisdiction of the entity, are encouraged
23 to be involved in and provide comment during deliberation
24 of planning, zoning, development, and resource management
25 decisions and during implementation of such decisions. The
26 state agency, local government, or other public entity is
27 encouraged to develop and implement a strategy to facilitate
28 such participation increase nongovernmental investment and
29 development to provide residents with safe, cost-effective, and
30 high-quality housing, jobs, amenities, and communities.

31 2. Efficiency, transparency, and consistency cost savings,
32 and tax relief. Planning, zoning, development, and resource
33 management should be undertaken to provide efficient,
34 and transparent, and consistent outcomes. Individuals,
35 communities, regions, and governmental entities should share

1 ~~in the responsibility to promote the equitable distribution of~~
2 ~~development benefits and costs~~ governmental processes, reduce
3 government spending, and decrease taxpayer burdens for those
4 who live in, work in, and visit the community. Governmental
5 entities should consider consolidation to reduce duplicative
6 services and improve efficiency.

7 3. ~~Clean, renewable, and efficient energy~~ Energy
8 production. Planning, zoning, development, and resource
9 management should be undertaken to promote ~~clean and renewable~~
10 ~~energy use and increased energy efficiency~~ production that
11 results in lower consumer costs.

12 4. ~~Occupational diversity~~ Business, employment, and
13 entrepreneurial growth. Planning, zoning, development,
14 and resource management should promote increased diversity
15 of employment and business opportunities, promote access
16 to education and training, and expand entrepreneurial
17 opportunities, ~~and promote the establishment of businesses~~
18 ~~in locations near existing housing, infrastructure, and~~
19 ~~transportation.~~ Governmental entities should eliminate land
20 development regulations that create barriers to starting or
21 operating a business and obtaining employment.

22 5. ~~Revitalization~~ Public safety. Planning, zoning,
23 development, and resource management should ~~facilitate the~~
24 ~~revitalization of established town centers and neighborhoods~~
25 ~~by promoting development that conserves land, protects~~
26 ~~historic resources, promotes pedestrian accessibility, and~~
27 ~~integrates different uses of property. Remediation and reuse~~
28 ~~of existing sites, structures, and infrastructure is preferred~~
29 ~~over new construction in undeveloped areas~~ promote quick
30 emergency response times, active local business districts,
31 and investments into commercial and residential property that
32 increase public safety. Governmental entities should adopt
33 other policies to increase public safety, including maintaining
34 residential areas and vital infrastructure, adequately funding
35 and supporting law enforcement and first responders, and

1 collaborating with state and federal law enforcement agencies.

2 6. *Housing diversity supply and affordability.* Planning,
3 zoning, development, and resource management should expand new
4 housing opportunities, encourage diversity in the types of
5 available housing, including but not limited to market rate
6 housing, workforce housing, starter homes, multifamily housing,
7 accessory dwelling units, manufactured housing, townhomes, and
8 apartments, and support the rehabilitation of existing housing,
9 ~~and promote the location of housing near public transportation~~
10 ~~and employment centers.~~ Governmental entities should eliminate
11 regulatory barriers to housing expansion, promote policies that
12 decrease housing costs, and encourage creative, efficient, and
13 cost-effective land use for housing purposes.

14 7. *Community character* Property rights. Planning, zoning,
15 development, and resource management should promote activities
16 ~~and development that are consistent with the character and~~
17 ~~architectural style of the community and should respond to~~
18 ~~local values regarding the physical character of the community~~
19 property rights, including a property owner's right to maintain
20 and improve property without unnecessary and burdensome
21 governmental or community interference.

22 8. *Natural resources, water quality, and agricultural*
23 *protection.* Planning, zoning, development, and resource
24 management should emphasize protection, preservation, and
25 restoration the conservation and improvement of natural
26 resources, water quality, while also supporting agricultural
27 land, and cultural and historic landscapes, and should increase
28 the availability of open spaces and recreational facilities and
29 the responsible use of Iowa's natural resources.

30 9. *Sustainable design* development. Planning, zoning,
31 development, and resource management should promote
32 ~~developments, buildings, and infrastructure that utilize~~
33 ~~sustainable design and construction standards and conserve~~
34 ~~natural resources by reducing waste and pollution through~~
35 ~~efficient use of land, energy, water, air, and materials that~~

1 expand on prior developments and offer the community continued
2 reinvestment opportunities, including through housing,
3 employment, or amenities within or near the community that
4 prioritize population growth.

5 10. *Transportation diversity.* Planning, zoning,
6 development, and resource management should promote ~~expanded~~
7 safe and economical transportation options systems for
8 residents of the community. Consideration should be given to
9 transportation ~~options~~ policies that ~~maximize mobility, reduce~~
10 ~~congestion, conserve fuel, and improve air quality~~ reduce
11 transportation costs, prioritize methods of transportation
12 used by the community, and remove unnecessary land development
13 regulations that limit transportation access and parking
14 availability.

15 Sec. 2. Section 18B.2, subsection 2, paragraphs a, f, h, and
16 i, Code 2026, are amended to read as follows:

17 a. Information relating to ~~public~~ nongovernmental
18 participation during the creation of the comprehensive plan or
19 land development regulations, including documentation of the
20 ~~public~~ nongovernmental participation process, a compilation
21 of objectives, policies, and goals identified in the public
22 comment received, and identification of the groups or
23 individuals comprising any work groups or committees that were
24 created to assist the planning and zoning commission or other
25 appropriate decision-making body of the municipality.

26 f. Objectives, policies, and programs to guide the future
27 development of a safe, convenient, efficient, and economical
28 transportation system. Plans for such a transportation system
29 may be coordinated with state and regional transportation
30 plans and take into consideration the need for diverse modes
31 of transportation, accessibility, improved air quality, and
32 interconnectivity of the various modes of transportation.
33 However, a municipality shall give first priority to safe and
34 economical transportation options.

35 h. Objectives, policies, and programs ~~addressing~~

1 ~~preservation and protection~~ improving water quality and
2 conserving and promoting the responsible use of agricultural
3 and natural resources.

4 *i.* Objectives, policies, and programs to assist future
5 development of educational facilities, cemeteries, health
6 care facilities, child care facilities, law enforcement and
7 fire protection facilities, libraries, and other ~~governmental~~
8 facilities that are necessary or desirable to meet the
9 projected needs of the municipality.

10 Sec. 3. Section 18B.2, Code 2026, is amended by adding the
11 following new subsection:

12 NEW SUBSECTION. 4. A municipality's comprehensive plan
13 developed using the guidelines under this section shall
14 prioritize expanding housing supply, growing economic and
15 business opportunities, and reducing tax burdens.>

16 2. Title page, line 1, by striking <eliminating> and
17 inserting <relating to>

COMMITTEE ON LOCAL GOVERNMENT
SCOTT WEBSTER, CHAIRPERSON